

2:00 PM

LINE 2

23-CIV-02087

ALIYA D'OYEN VS. JAMI J JAMISON, ET AL.

ALIYA D'OYEN
JAMI J JAMISON

KENNETH SELIGSON
CHARLES S PAINTER

DEFENDANTS' MOTION FOR SUMMARY JUDGMENT AND/OR SUMMARY ADJUDICATION

TENTATIVE RULING:

On the Motion for Summary Judgment and/or Summary Adjudication by Defendants James Ford, Inc., Jamie J Jamison aka Jami Stevens and Robert Jamison, incorrectly sued as Bob Jamo ("Defendants"), to the Complaint by Plaintiff Aliya D'Oyen ("Plaintiff"), the court rules as follows:

As an initial matter, the court notes that Defendants' Memorandum is unsigned. (See Defendants' Memorandum filed May 22, 2026.) "An unsigned paper shall be stricken unless omission of the signature is corrected promptly after being called to the attention of the attorney or party." (Code Civ. Proc., § 128.7, subd. (a).) Since this is a curable defect (*Walton v. Victor Valley Community College Dist.* (2026) 119 Cal.App.5th 1164, 1170, as modified on denial of reh'g (Apr. 14, 2026), review denied (July. 22, 2026)), Defense counsel shall file and serve a signed memorandum by 11:00 a.m. on August 25, 2026 and email a copy to Department 4.

Defendants' separate statement contains numerous evidentiary facts rather than material facts

Defendants improperly include numerous evidentiary facts rather than material facts in their separate statement in contravention of California Rules of Court, rule 3.1350(d)(2) ["The separate statement should include only material facts...."]. "The facts alleged or tendered in a summary judgment proceeding perform two different functions. As material facts they measure whether the plaintiff has alleged a cause of action. As evidentiary facts they establish whether the material facts have been proved." (*Carlsen v. Koivumaki* (2014) 227 Cal.App.4th 879, 884; *id.* at p. 884, fn. 6.) Courts can use their inherent power to strike undisputed facts that do not comply with the statutory requirements (*Overstock.com, Inc. v. Goldman Sachs Group, Inc.* (2014) 231 Cal.App.4th 471, 499–500 ; *Reeves v. Safeway Stores, Inc.* (2004) 121 Cal.App.4th 95, 106), but they do not have to strike them. (*Young v. RemX Specialty Staffing* (2023) 91 Cal.App.5th 427, 431.) The court does not exercise its discretion to strike the facts. However, it relies upon the rule that if one fact is properly disputed, summary judgment and/or summary adjudication is denied. (See Weil & Brown, *California Practice Guide: Civil Procedure Before Trial* § 10:95.1 (TRG June 2026 update) ("Include only those facts which are *truly material* to the claims or defenses involved because the separate statement effectively *concedes* the materiality of whatever facts are included." [emphasis in original].)

Plaintiff's responsive separate statement improperly incorporates by reference other facts.

Plaintiff improperly incorporates by reference other facts instead of citing to evidence that disputes Defendants' facts. (See Plaintiff's Responses to Defendants' Separate Statement of Undisputed Material Facts nos. 74-202.) "An opposing party who contends that a fact is disputed must state, on the right side of the page directly opposite the fact in dispute, the nature of the dispute and describe the evidence that supports the position that the fact is controverted. Citation to the evidence in support of the position that a fact is controverted must include reference to the exhibit, title, page, and line numbers." (Cal. Rules of Court, rule 3.1350(f)(2).) Plaintiff's incorporation by reference defeats the purpose of the separate statement requirement, which is to allow the court to look at the disputed fact and the cited evidence to determine whether a triable issue of material fact exists. The Court has considered Plaintiff's responsive separate statement.

The court notes that Defendants also improperly adopt this same practice in Defendants' Reply Separate Statement. (See Defendants' Reply Separate Statement of Facts nos. 76-202.) However, Plaintiff objects to the entirety of Defendants' Reply Separate Statement, which the court sustains as set forth below.

Plaintiff failed to bookmark her appendix of evidence

Plaintiff failed to electronically bookmarked the exhibits to her appendix and the D'Oyen declaration in violation of the California Rules of Court. (See Cal. Rules of Court, rule 3.1110(f)(4).)

The failure to follow the rules makes the Court's job difficult and the parties are cautioned to follow the applicable statutes and rules in submitting documents to the court. The court notes that in its Response to Objections to Evidence, Plaintiff refers to this Court's standing order. (Resp. to Objections to Evid. Filed August 17, 2026 at p. 2.) Judge Fineman has suggestions on her department's webpage about litigating cases in front of her, but they are not standing orders.

Evidentiary Objections

Plaintiffs' evidentiary objections are ruled on as follows:

Nos. 1-4 and 7: These objections fail to comply with California Rules of Court, rule 3.1354(b). Each written objection must quote or set forth the objectionable statement or material. (Id., rule 3.1354(b)(3).) Plaintiff includes ellipses in quoting the objected material making it unclear to the court whether the objection is to the entirety of these paragraphs or only the quoted portions. Failure to comply with rule 3.1354 may be grounds for refusing to rule on evidentiary objections. (See *Hodjat v. State Farm Mut. Auto. Ins. Co.* (2012) 211 Cal.App.4th 1, 7–9 [trial court did not abuse its discretion in refusing to rule on evidentiary objections for failure to comply with CRC Rule 3.1354].) Thus, the court declines to rule on these objections because of their ambiguity.

No. 5: (Stevens Decl., ¶ 30): SUSTAINED based on lack of personal knowledge and hearsay.

Nos. 6, 8, 9: OVERRULE.

Plaintiff's objection to Defendants' Reply Separate Statement: SUSTAINED. Reply papers for a summary judgment/summary adjudication motion shall not include a separate statement. (Code Civ. Proc., § 437c, subd. (b)(4) ["The reply shall not include any new evidentiary matter, additional material facts, or separate statement submitted with the reply and not presented in the moving papers or opposing papers."].)

Plaintiff's Complaint

This action arises out of Plaintiff's former employment with Defendants. The Complaint alleges eight causes of action: (1) Disability Discrimination (Violation of Gov. Code, § 12940(a)); (2) Violation of California Family Rights Act (Gov. Code, § 12945.2); (3) Harassment on the Basis of Disability (Violation of Gov. Code, § 12940(j)); (4) Failure to Prevent, Investigate and Remedy Discrimination, Harassment or Retaliation (Violation of Gov. Code, § 12940(k)); (5) Failure to Accommodate Disability (Violation of Gov. Code, § 12940(m)); (6) Failure to Engage in the Interactive Process to Accommodate Disability (Violation of Gov. Code, § 12940(n)); (7) Retaliation for Opposing Practices Forbidden by FEHA (Violation of Gov. Code, § 12940(h)); and (8) Wrongful Termination.

Legal Standard

A motion for summary judgment shall be granted if the papers submitted show there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law. (Code Civ. Proc., § 437c, subd. (c).) A defendant has met its burden of showing that a cause of action has no merit if defendant shows that one or more elements of the cause of action cannot be established, or that there is a complete defense to that cause of action. (*Id.*, § 437c, subd. (p)(2).) If a defendant meets this burden, the burden shifts to plaintiff to show that a triable issue of one or more material facts exists to that cause of action, or a defense thereto. (*Id.*) "A triable issue of material fact exists if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion, in accordance with the applicable standard of proof." (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850 (*Aguilar*).)

Because summary judgment denies the adverse party a trial, it should be granted with caution. (*Assilzadeh v. California Fed. Bank* (2000) 82 Cal.App.4th 399, 409.) Summary judgment law turns on issue finding rather than issue determination. (*Diep v California Fair Plan Ass'n* (1993) 15 Cal.App.4th 1205, 1207.) The court does not decide the merits of the issues, but merely discovers whether there are issues to be tried and whether the parties possess evidence that demands the analysis of a trial. (*Melamed v City of Long Beach* (1993) 15 Cal.App.4th 70, 76.) A motion for summary judgment is not a substitute for a bench trial. (*Assilzadeh, supra*, at 409.) The trial court's role involves no findings of fact. (*Raghavan v. Boeing Co.* (2005) 133 Cal.App.4th 1120.) Declarations of the moving party are strictly construed, those of the opposing party are liberally construed, and doubts as to whether a summary judgment should be granted must be resolved in favor of the opposing party. (*Aguilar, supra*, 25 Cal.4th at pp. 843-856.)

In most material respects, a motion for summary adjudication applies the same procedures as a motion for summary judgment. (*Cal. Prac. Guide Civ. Pro. Before Trial*, § 10:26 (TRG June 2026 update).)

Defendants' Notice of Motion

Defendants seek summary judgment or alternatively, summary adjudication to each/all causes of action as follows:

ISSUE ONE: Plaintiff Cannot Establish A Prima Facie Case for Disability Discrimination, which is fatal to Plaintiff's First, Fourth, Fifth, and Eighth Causes of Action in the Complaint.

ISSUE TWO: Plaintiff Was Not Denied Any Requested CFRA Leave When She Was Eligible For Such Leave And Defendants' Granted The Leave To Which She Was Entitled, which is fatal to the Plaintiff's Second Cause of Action (as to interference claims.)

ISSUE THREE: There Is No Causal Connection Between Any Request For Or Taking Of Protected Leave By Plaintiff And Any Adverse Employment Action which is fatal to the Plaintiff's Second Cause of Action (as to retaliation claims.)

ISSUE FOUR: Defendants Had Legitimate, Non-Discriminatory Business Reasons For Her Demotion and Termination And Plaintiff Cannot Prove That Defendants' Proffered Reasons For Her Demotion or Termination Are Pretext For Any Disability Discrimination, which is fatal to Plaintiff's First, Third, Fourth, Fifth, Sixth, Seventh, and Eighth Causes of Action in the Complaint.

ISSUE FIVE: Defendants Did Not Act With Malice, Oppression, or Fraud as required by Statute to Support a Claim for Punitive Damages, so Plaintiff's Claim for Punitive Damages Should Be Dismissed.

(Defendants' Notice of Motion.)

Procedurally, Defendants' arguments with respect to some causes of action are not the same issues for which Defendants seek summary adjudication as to these same causes of action. (See e.g., Defendants' Memorandum to the Fourth, Fifth and Sixth Causes of Action.) Therefore, the court's ruling as to Defendants' summary adjudication motion is limited to the issues raised in Defendants' Notice of Motion.

Plaintiff exhausted her administrative remedies with respect to allegations regarding her demotion in 2021.

Under California law, an employee must exhaust the administrative remedy provided by the Fair Employment and Housing Act (“FEHA”) by filing an administrative complaint with the Department of Fair Employment and Housing (“DFEH”) and obtaining a notice of right to sue from the DFEH before bringing suit on a cause of action under FEHA. (*Martin v. Lockheed Missiles & Space Co., Inc.* (1994) 29 Cal.App.4th 1718, 1724 (“*Martin*”).) To exhaust administrative remedies as to a particular act made unlawful under FEHA, the claimant must specify that act in the administrative complaint, even if the complaint does specify other cognizable wrongful acts. (*Ibid.*) The failure to exhaust an administrative remedy is a jurisdictional, not a procedural defect, and the failure to exhaust administrative remedies is a ground for a defense summary judgment. (*Ibid.*)

Thus, the scope of a lawsuit is limited to the claims charged in or related to allegations in the DFEH complaint and growing out of the investigation of those allegations. (*Martin, supra*, 29 Cal.App.4th at p. 1729; *Wills v. Sup.Ct.* (2011) 195 Cal.App.4th 143, 157-159.) A lawsuit that brings claims in court that are not like, or reasonably related to, the claims raised in the DFEH complaint is therefore subject to dismissal on exhaustion grounds. (*Kuigoua v. Department of Veterans Affairs* (2024) 101 Cal.App.5th 499, 508-509.)

Plaintiff’s right to sue letter limits the basis of her FEHA claims alleged in the First through Sixth Causes of Action. While Defendants focus on the date listed in Plaintiff’s DFEH complaint, April 20, 2022 (Defendants’ Sep. Statement of Undisputed Material Facts (“DSSUMF”) no. 67), the statute and case law refer to “acts.” (*Martin, supra*, 29 Cal.App.4th at p. 1724.) Plaintiff explicitly mentions demotion in her DFEH complaint:

Complainant was harassed because of complainant's race, color, family care or medical leave (cfra).

Complainant was discriminated against because of complainant's race, color, disability (physical or mental), family care or medical leave (cfra) and as a result of the discrimination 21 was terminated, **demoted**, denied reasonable accommodation for a disability, denied family care or medical leave (cfra).

Complainant experienced retaliation because complainant requested or used a disability-related accommodation, requested or used family care or medical leave (cfra) and as a result was terminated, **demoted**, denied reasonable accommodation for a disability, denied family care or medical leave (cfra).

(Defendants’ Compendium of Evidence, Ex. H, emphasis added.) Thus, reading the administrative claim liberally, as this court must do (*Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 254), Plaintiff’s administrative claim includes demotion. Thus, Plaintiff exhausted her administration remedy with respect to allegations regarding her 2021 demotion.

The Court Denies the Motion for Summary Judgment

As stated above, if there is one properly disputed fact, summary judgment is denied. The court finds that Plaintiff has, at a minimum, properly disputed whether Defendants had information that Plaintiff had a disability that prevented her from coming to work on time. (Response to DSSUMF no. 68.) Specifically, in 2021, Plaintiff sent an email to Dee Dannowitz and later Bob Jamison where she tied her attendance to her medical condition, which is a disability because it impacted her ability to do her job. (D'Oryen Decl., ¶¶ 7, 9, Ex. A; see also Plaintiff's Appendix Ex. D at pp. 111-113.) Plaintiff told someone at James Ford that she was late to work because she was feeling ill and her condition was difficult to manage and the response was that he did not care and that employees had to be on time to work. (Plaintiff's Appendix, Ex. D at pp. 119-120.) Jami Stevens authenticated her handwriting on a doctor's note dated June 8, 2021. (Plaintiffs Appendix Exs. A, B at p. 45:13-24.) Stevens also had many meetings with Plaintiff about her health. (*Id.*, Ex. B at 64:5-6.) Stevens was monitoring Plaintiff's restroom use when she returned from surgery. (*Id.*, at p. 141:2-4, 142:12-16.) The monitoring of Plaintiff's bathroom breaks was specific to her. (*Id.* at p. 147:3-5.) As early as May 18, according to Robert Jamison, James Ford knew that Plaintiff had fibroids, anemia, heavy bleeding, and fatigue. (*Id.*, Ex. C at p. 69:19-24; see also *id.*, at p. 70:8-9.)

Further, Plaintiff in response to DSSUMF No. 68 shows that there were more than two instances of harassment, specifically Stevens monitoring Plaintiff's, and only Plaintiff's bathroom usage and other acts by Stevens. Additionally, DSSUMF no. 72 is in dispute because Plaintiff also asked for a flexible work schedule. (Plaintiff's response to DSSUMF no. 72.)

First Cause of Action for Disability Discrimination

This cause of action for disability discrimination is based on Defendants' demotion of Plaintiff as well as her termination. (Complaint, ¶¶ 67-70.) Defendants seek summary adjudication of this claim on the ground that Plaintiff cannot establish a prima facie case of disability discrimination, as well as Defendants had a legitimate, non-discriminatory business reason for Plaintiff's demotion and termination. (Defendants' Notice of Motion, Issue One and Four.)

Where a plaintiff alleges discrimination under FEHA or as a claim for wrongful employment termination in violation of public policy, California follows the burden shifting analysis set forth in *McDonnell Douglas Corp. v. Green* (1973) 411 U.S. 792 ("*McDonnell*"). In the first stage, the plaintiff must establish that (1) he or she engaged in a protected activity, (2) the employer subjected the employee to an adverse employment action, and (3) a causal link exists between the protected activity and the employer's action. (*Id.* at p. 1109.) If the employee establishes these elements, thereby showing a prima facie case exists, the burden then shifts to the employer to provide evidence that there was a legitimate, non-retaliatory reason for the adverse employment action. (*Ibid.*) If the employer produces evidence showing a legitimate reason for the adverse employment action, the burden shifts back to the employee to provide substantial responsive evidence that the employer's proffered reason was untrue or pretextual. (*Ibid.*) When a defendant employer seeks summary judgment, the defendant has the initial burden. "To satisfy this initial burden in an employment discrimination case, a defendant employer must either undermine an

element of the plaintiff's prima facie case—by affirmatively negating it or showing the plaintiff cannot prove it—or provide a legitimate nondiscriminatory reason for the adverse employment action.” (*Cornell v. Berkeley Tennis Club* (2017) 18 Cal.App.5th 908, 926 [disability case].)

Defendants seek to define a disability too narrowly. “A physical disability under the FEHA includes any physical impairment that affects the neurological or immunological systems and limits a major life activity. (Gov. Code, § 12926, subd. (m)(1).) A physical disability “limits a major life activity if it makes the achievement of the major life activity difficult.” (Gov. Code, § 12926, subd. (m)(1)(B)(ii); Cal. Code Regs., tit. 2, § 11065, subd. (l)(3).) “ ‘[W]orking’ is a major life activity, regardless of whether the actual or perceived working limitation implicates a particular employment or a class or broad range of employments.” (Gov. Code, § 12926.1, subd. (c), § 12926, subd. (m)(1)(B)(iii); Cal. Code Regs., tit. 2, § 11065, subd. (l)(1)&(3)(D).) Repeated or extended absences from work for medical appointments constitute a limitation on the major life activity of working. (*Soria v. Univision Radio Los Angeles, Inc.* (2016) 5 Cal.App.5th 570, 588– 589, 210 Cal.Rptr.3d 59.)” (*Ross v. County of Riverside* (2019) 36 Cal.App.5th 580, 594.) The evidence is sufficient to raise a disputed fact of whether Plaintiff was limited in her work because of her physical impairment, e.g. her bleeding and needing to use the restroom all the time and whether defendants’ stated reasons for demoting and terminating Plaintiff are pretextual.

As to Plaintiff’s termination, Defendants present evidence sufficient to support that they had a legitimate, non-discriminatory business reason for terminating Plaintiff. Defendants proffer evidence that they terminated Plaintiff because of her work attendance. From January 1 and April 20, 2022, Plaintiff’s work attendance was a significant and persistent problem. (DSSUMF nos. 48, 50, 52, 62, 65-66.) At the time of Plaintiff’s termination, Defendants claim they had no information that Plaintiff had a disability that prevented her from coming to work on time. (DSSUMF no. 68.) As stated above, Plaintiff provides facts demonstrating that there is a question of fact of whether they had that information.

Further, Plaintiff’s evidence raises a material fact in dispute in response to DSSUMF no. 109 that she did not request an accommodation to her schedule.

The Motion to the First Cause of Action, Issue no. 1, is DENIED.

Second Cause of Action for Violation of the California Family Rights Act (“CFRA”)

The Second Cause of Action alleges that Defendants did not advise Plaintiff of her right to leave under the CFRA or otherwise give notice of the designation of her leave as CFRA-qualifying leave. (Complaint, ¶ 80.) Defendants knew that Plaintiff required leave for her serious medical condition, but Defendants did not provide Plaintiff the necessary medical leave, did not provide any accommodations, and demoted and terminated Plaintiff’s employment in violation of CFRA. (Complaint, ¶ 83.)

Violations of the CFRA generally fall into two types of claims: (1) interference claims in which an employee alleges that an employer denied or interfered with substantive rights to protected

medical leave, and (2) retaliation claims in which an employee alleges that she suffered an adverse employment action in response to exercising the right to CFRA leave. (*Moore v. Regents of Univ. of California* (2016) 248 Cal.App.4th 216, 233.)

Besides seeking summary judgment, Defendants seek to adjudicate Plaintiff's interference and/or retaliation claims regarding her demotion and termination. (See Defendants' Notice of Motion, Issues Two and Three.)

As to Plaintiff's demotion, the facts demonstrate that she took her leave. However, the is a question of fact of whether they retaliated against her for taking the leave. While Jamison wrote that Plaintiff would be demoted upon her return from medical leave if she could not do her job, in fact, Plaintiff was demoted nine days before she went out on leave and thus never had the chance to show that her surgery would improve her job performance, which creates an inference of whether she was demoted for taking the leave and raises an issue of disputed fact.

Third Cause of Action for Harassment on the Basis of Disability

This cause of action alleges that Defendants intentionally engaged in harassment and bullying on the basis of Plaintiff's disability. (Complaint, ¶ 90.)

To establish a prima facie case of harassment under FEHA, a plaintiff must show that: (1) plaintiff was a member of a protected class; (2) plaintiff was subjected to unwelcome harassment; (3) the harassment was based on plaintiff's membership in an enumerated class; (4) the harassment unreasonably interfered with plaintiff's work performance by creating an intimidating, hostile, or offensive work environment; and (5) defendant is liable for the harassment. (*Thompson v. City of Monrovia* (2010) 186 Cal.App.4th 860, 876.)

Defendants argue that this claim fails because Plaintiff was not a member of a protected group after returning from medical leave. While Plaintiff's doctor stated that Plaintiff was not disabled as of January 28, 2022 (DSSUMF no. 41), this evidence is insufficient to establish that Plaintiff was not disabled as defined under FEHA. (See Gov. Code, §§ 12926, subd. (m), 12926.1, subd. (b).) Defendants therefore fail to meet their initial burden as to this argument.

Defendants also argue that the Complaint alleges two instances of harassment in which Jami Stevens allegedly yelled at Plaintiff and made negative comments about her braided hair, and that neither act has any relation to her disability. (DSSUMF no. 70.) However, Plaintiff raises a triable issue of material fact as to alleged harassment regarding monitoring Plaintiff's restroom use and recording how long Plaintiff spent in the restroom on multiple specific occasion and whether such harassment was connected to her disability. (Plaintiff's Response to DSSUMF no. 70.)

The Motion to the Third Cause of Action is DENIED.

The court proceeds to address the remainder of Plaintiff's causes of action with respect to summary adjudication only.

Fourth Cause of Action for Failure to Prevent, Investigate and Remedy Discrimination, Harassment or Retaliation, Fifth Cause of Action for Failure to Accommodate Disability and Sixth Cause of Action for Failure to Engage in the Interactive Process to Accommodate Disability

Defendants seek summary adjudication of the Fourth Cause of Action for Failure to Prevent, Investigate and Remedy Discrimination, Harassment or Retaliation and Fifth Cause of Action for Failure to Accommodate Disability on the ground that Plaintiff cannot establish a prima facie case for disability discrimination and that Defendants had a legitimate, non-discriminatory business reason for Plaintiff's demotion and termination. (Defendants' Notice of Motion, Issue One and Issue Four.) Defendants fail to show that these arguments dispose of these claims. As stated above, Plaintiff provides facts that raise a question of material fact of whether the reasons for her demotion and termination are pretext. Further, the failure to provide accommodations for the medical appointments can be a failure to accommodate and engage in the interactive process to accommodate a disability. (*Ross v. County of Riverside*, *supra*, 36 Cal.App.5th at p. 594.)

Similarly, Defendants seek summary adjudication of the Sixth Cause of Action on the ground that they had a legitimate, non-discriminatory business reason for Plaintiff's demotion and termination (Defendants' Notice of Motion, Issue Four), but they fail to show that such an analysis applies to this cause of action and, as stated above, there are material facts in dispute.

The Motion to the Fourth, Fifth and Sixth Causes of Action is therefore DENIED.

Seventh Cause of Action for Retaliation for Opposing Practices

Defendants seek summary adjudication of this retaliation claim on the ground that they had a legitimate, non-discriminatory business reason for Plaintiff's termination. (Defendants' Notice of Motion, Issue Four.) Once again, Defendants' evidence supports that they can articulate legitimate reasons for her demotion and termination. (DSSUMF nos. 179, 181-183, 186, 198.)

In opposition, Plaintiff argues that Defendants are incorrect that the only adverse action was her termination. Plaintiff claims that the Complaint also pleads the demotion itself as an adverse action. For the same reasons discussed above, Plaintiff raises a triable issue of material fact as to pretext. (Plaintiff's Response to DSSUMF nos. 179, 181-183, 186, 198.)

The Motion to the Seventh Cause of Action is DENIED.

Eighth Cause of Action for Wrongful Termination

Defendants seek summary adjudication of this claim on the ground that they had a legitimate, non-discriminatory business reason for terminating Plaintiff. (Defendants' Notice of Motion, Issue Four; DSSUMF nos. 179, 181-183, 186, 198.) Plaintiff responds that her discrimination and retaliation claim present triable issues of fact, and therefore this claim also survives. For the same reasons previously discussed, Plaintiff raises a triable issue of material fact as to pretext to

support her discrimination and retaliation claims. Accordingly, she also raises a triable issue of material fact as to this wrongful termination claim.

The Motion to the Eighth Cause of Action is DENIED.

Punitive Damages claim

Defendants offer three facts in support of their summary adjudication motion to the punitive damages claims. (DSSUMF nos. 200-202.) These facts are that Plaintiff was not disabled following her return from leave, Plaintiff was terminated by Robert Jamison on April 30, 2022, and Defendants had no information that Plaintiff had any disability that prevented her from coming to work on time at the time of her termination. (*Ibid.*) However, as set forth above, Plaintiff raises issues of disputed fact on whether she was disabled and whether Defendants had information regarding her disability

The motion to strike the punitive damages is DENIED.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Plaintiff shall prepare a written order consistent with the Court's ruling for the Court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 3

24-CIV-02224

CAROLYN DIXON, ET AL. VS. CYNDA WATKINS, ET AL.

CAROLYN DIXON
CYNDA WATKINS

J EDWARD KERLEY
KIRILL DEVYATOV

PLAINTIFFS' MOTION FOR SUMMARY ADJUDICATION OF PLAINTIFFS' FIRST CAUSE OF ACTION FOR DECLARATORY RELIEF AND STATE FARM'S TWENTY-SECOND AFFIRMATIVE DEFENSE

TENTATIVE RULING:

Plaintiffs Carolyn Dixon and David Bassi have moved for summary adjudication on their first cause of action for declaratory relief and Defendant State Farm General Insurance's ("State Farm") twenty-second affirmative Defense.

Plaintiffs' motion is DENIED.

The Court declines to rule on the objections filed by Defendant, as the Court does not deem the evidence subject to those objections material to its disposition of this motion. (Code Civ. Proc., § 437c, subd. (q).)

PROCEDURAL ISSUES

The Court greatly appreciates receiving the binder of the pleadings, which made the motion easier to review.

Both Plaintiffs and Defendants improperly include numerous evidentiary facts rather than material facts in their separate statement in contravention of California Rules of Court, rule 3.1350(d)(2) ["The separate statement should include only material facts...."].) "The facts alleged or tendered in a summary judgment proceeding perform two different functions. As material facts they measure whether the plaintiff has alleged a cause of action. As evidentiary facts they establish whether the material facts have been proved." (*Carlsen v. Koivumaki* (2014) 227 Cal.App.4th 879, 884; *id.* at p. 884, fn. 6.) Courts can use their inherent power to strike undisputed facts that do not comply with the statutory requirements (*Overstock.com, Inc. v. Goldman Sachs Group, Inc.* (2014) 231 Cal.App.4th 471, 499–500 ; *Reeves v. Safeway Stores, Inc.* (2004) 121 Cal.App.4th 95, 106), but they do not have to strike them. (*Young v. RemX Specialty Staffing* (2023) 91 Cal.App.5th 427, 431.) The court does not exercise its discretion to strike the facts. Further, both sides appear to admit that the facts are undisputed and the issue is one of law based upon the language of the policies and statute, but then include irrelevant facts, which has made the court's job harder.
